IN THE NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI SINGLE BENCH
(*Through Hybrid Mode)*

Item No.1
Rule 63 Appeal/10/2025

IN THE MATTER OF:

Shri Girija Smelters Ltd & 5 Others ... Appellants

Under Rule: 63 of NCLT Rules, 2016

Order delivered on 30.01.2026

CORAM:
SHRI KISHORE VEMULAPALLI, HON'BLE MEMBER (JUDICIAL)

PRESENT:

For the Appellant : Mr. Ganga Anil Kumar, PCS

ORDER

This Application has been filed by the Appellant under Rule 63 of the National Company Law Tribunal Rules, 2016, seeking to set aside the Order dated 09.12.2025 passed by the Learned Registrar, NCLT, Amaravati Bench, and to direct the Registry to register the Second Motion Petition (Filing No.28121290000000722023) forthwith.

The Counsel for the Appellant submitted that, after the Second Motion Petition was returned by the Registry, a compliance memo was filed explaining the merged, consolidated, and comprehensive Scheme of Arrangement, involving merger, demerger, and amalgamation of the companies, for the clarity of this Bench while passing orders in 2nd Motion Petition. The Counsel further sought two weeks' time to file an amended copy of the Second Motion Petition, incorporating the result of the comprehensive scheme explained in the said compliance memo and also including the index and synopsis to the main petition.

Considering the submissions made by counsel for the Appellant, two weeks' time is granted for filing the amended Second Motion Petition, as stated above. Upon compliance and filing of the amended petition, the Registry is directed to number the Company Petition and place the matter in regular course**. Accordingly, Rule 63 Appeal No. 10 of 2025 is disposed of.**

Sd/-
(KISHORE VEMULAPALLI)
MEMBER (JUDICIAL)